



Re: Factual Update: Section 162 Application & Disclosure Query | Ref: JvS/166792

1 message

Wilbur Matthee <info@ethichawks.co.za>
To: Investigations@jse.co.za
Cc: Investigations@jse.co.za
Bcc: wilburmat@gmail.com

Mon, 11 May 2026 at 13:22

Dear Ncumisa Sinyanya,

Thank you for your correspondence dated May 11, 2026, providing a factual update and clarification regarding the Section 162 application and disclosure queries.

I appreciate the JSE's detailed explanation regarding the application of Practice Note 2/2015 and the Listings Requirements. The clarification on the necessity for information to be specific, precise, and demonstrably price-sensitive before a SENS announcement is required—and that a court application at the point of institution may not meet these thresholds—is clearly noted.

I acknowledge the JSE's position that, based on the current information, there does not appear to be an obligation for the Company to disclose the referenced matters to the market at this time.

I appreciate the JSE's engagement and the clarity provided on these regulatory requirements. This concludes my query regarding the disclosure obligations for this specific matter.

Yours Professionally,

Wilbur Matthee
Specialist Nurse

--- On Mon, 11 May 2026 10:56:42 +0200 Investigations@jse.co.za wrote ---

Dear Mr Matthee

The below matter refers.

Following a consideration of the additional information you submitted to the JSE in relation to the Company and/or its directors, the JSE wishes to clarify its position regarding the disclosure obligations arising from litigation, court applications, legal proceedings and/or investigations. The mere existence of litigation or instituting a court application against the Company or its directors does not, in and of itself, give rise to an immediate obligation to publish a SENS announcement or to effect immediate disclosure to shareholders.

Practice Note 2/2015 requires directors of issuers to exercise discretion in determining what constitutes price sensitive information. However, such discretion is not absolute and must be exercised objectively in accordance with the Listings Requirements. The Practice Note provides two key guiding principles in this regard: firstly, that the information must be **specific and precise**; and secondly, once specificity and precision

are established, issuers must then assess whether the information could have a material effect on the price of their securities. The assessment of materiality must consider both quantitative and qualitative factors. Information will be regarded as specific or precise, with a reasonable degree of certainty, if it pertains to a current or reasonably anticipated event or circumstance that relates directly or indirectly to the issuer, and the information is specific enough to predict its effect on the issuer's share price. Additionally, paragraph 3.4 of the Listings Requirements states that the obligation to disclose information on SENS must pertain to price sensitive information that relates directly or indirectly to the issuer.

Accordingly, a court application, at the point of its institution, constitutes no more than an allegation or claim, the outcome of which remains uncertain. In the absence of sufficient certainty, specificity, and demonstrable price sensitivity, requiring the Company to publish a SENS announcement in respect of such proceedings would be contrary to the Listings Requirements

Having regard to the information provided to the JSE, it does not appear that there is any obligation on the Company to disclose such information to the market. Accordingly, we are unable to pursue this matter.

Happy to discuss or to provide further clarity.

Regards

Ncumisa Sinyanya

Investigations | Issuer Regulation

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From: Nadia Jada <NadiaJ@jse.co.za>

Sent: 2026/04/12 7:26 pm

To: Nadia Jada <NadiaJ@jse.co.za>

Subject: FW: Factual Update: Section 162 Application & Disclosure Query | Ref: JvS/166792

From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Wednesday, 25 March 2026 21:40

To: Investigations <Investigations@jse.co.za>

Subject: Re: Factual Update: Section 162 Application & Disclosure Query | Ref: JvS/166792

Yes, please proceed.

Wilbur William Matthee

RN, BTech (Psych, Midw, Comm (R425)), PG Dip HSM (NQF 8)

On Wed, 25 Mar 2026, 11:25 Investigations, <Investigations@jse.co.za> wrote:

Dear Mr Matthee

Thank you for your email.

To properly address the new issues raised in the attached letter, we would need to engage with the company regarding the section 162 director-delinquency application and the B-BBEE Commission's fronting investigation. Do you have any objection to us putting this information to the company for their response?

Regards,

Nadia Jada

Head: Investigations | Issuer Regulation

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From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Friday, 20 March 2026 11:41

To: Investigations <Investigations@jse.co.za>

Cc: Jowidene van Schalkwyk <Jowidenev@jse.co.za>

Subject: Factual Update: Section 162 Application & Disclosure Query | Ref: JvS/166792

Dear Ms. Jada,

Please find attached a formal factual update regarding the existing file (Ref: JvS/166792) for AfroCentric Investment Corporation Limited (JSE: ACT).

While I respect the JSE's jurisdictional declination of 6 March 2026, I am placing the following urgent developments on the formal record for the Authority's assessment in the context of its continuous disclosure mandate:

High Court Filing: On 19 March 2026, an urgent Section 162 Director Delinquency Application was filed with the High Court (Western Cape Division) under Filing Reference HCGS951842. The application names the Lead Independent Director and the Chairs of the Social & Ethics and Audit & Risk Committees as individual Respondents.

SENS Announcement Sequence: On 18 March 2026—the day preceding this filing—the Company released a SENS announcement regarding a Sanlam transaction. On that same date, the share price reached a 52-week low of R0.71.

Material Disclosure Question: I am placing a factual question on the regulatory record regarding whether the omission of active material litigation—specifically the Section 162 application and an active B-BBEE Commission investigation (Case No. 5/02/2026) with a potential R580 million exposure—is consistent with JSE Listings Requirements.

I am not requesting a reopening of the declined matter but am providing these facts for whatever regulatory purpose the JSE considers appropriate within its mandate. I remain available to provide the full High Court application bundle upon request.

Yours faithfully,

Wilbur William Matthee
Specialist Nurse | BTech (Psych, Midw, Comm (R425)) | PG Dip HSM (NQF 8)

On Fri, 06 Mar 2026, 16:52 Investigations, <Investigations@jse.co.za> wrote:

Dear Mr Matthee

I confirm receipt of your email, the content of which is duly noted.

Thank you and regards,

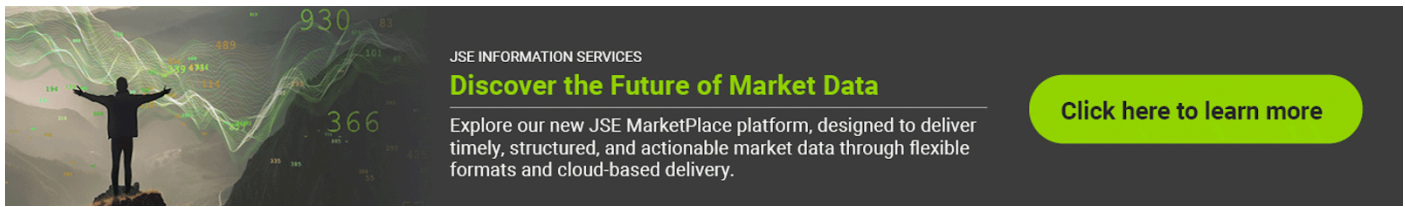
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From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Friday, 06 March 2026 14:56

To: Investigations <Investigations@jse.co.za>

Cc: Jowidene van Schalkwyk <Jowidenev@jse.co.za>

Subject: Re: Assessment of complaint - Afrocentric Investment Corporation Limited - JvS\166792

Dear Ms Jada,

RE: AFROCENTRIC INVESTMENT CORPORATION LIMITED - COMPLAINT REF: JvS/166792

I acknowledge receipt of your letter dated 6 March 2026 regarding my complaint lodged with the JSE on 20 January 2026.

I note and accept the JSE's jurisdictional determination that the matters raised fall outside the scope of the JSE Listings Requirements and the Financial Markets Act, and that the appropriate forums for adjudication are the CCMA, the Labour Court, and the Equality Court as referenced in paragraph 5 of your letter.

I am grateful to the JSE Issuer Regulation Division for acknowledging the seriousness of the allegations raised, and I note the guidance provided regarding the competent statutory and judicial forums.

For your records, I confirm that:

Labour Court proceedings have been instituted against AfroCentric Investment Corporation Limited (Third Respondent), AfroCentric Health (RF) (Pty) Ltd (First Respondent), and Medscheme Holdings (Pty) Ltd (Second Respondent) as of 5 March 2026;

Two CCMA Certificates of Non-Resolution have been issued (WECT23564-25 and WECT24486-25, both dated 9 January 2026); and

The matter is now proceeding through the Labour Court as the JSE has indicated is appropriate.

I appreciate the JSE's prompt assessment and clear guidance on jurisdictional limitations. The response has been noted and will form part of the record in the ongoing Labour Court proceedings.

Thank you for your attention to this matter.

Yours sincerely,

Sr. Wilbur Matthee

Specialist Nurse Health Services Manager
SRN | BTech Psych, Midw, Community | PG Dip HSM (NQF 8)

OBJ

On Fri, 06 Mar 2026, 10:08 Investigations, <Investigations@jse.co.za> wrote:

Good day Sirs,

Our letter dated 6 March 2026 is attached hereto for your attention.

Kindly acknowledge receipt.

Regards,

Jowidene van Schalkwyk

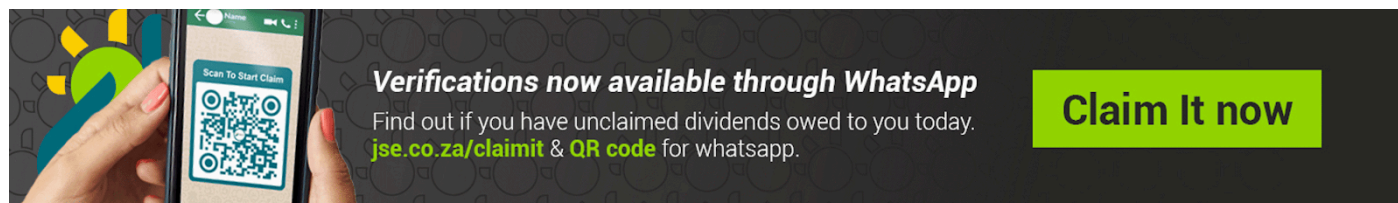
Investigations: Enforcement Specialist | Issuer Regulation

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